

SENATE No. 2143

The Commonwealth of Massachusetts

PRESENTED BY:

Paul R. Feeney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to permit enhanced public access to deliberations of public bodies and to permit improved efficiency of public bodies.

PETITION OF:

NAME:

Paul R. Feeney

DISTRICT/ADDRESS:

Bristol and Norfolk

SENATE No. 2143

By Mr. Feeney, a petition (accompanied by bill, Senate, No. 2143) of Paul R. Feeney for legislation to permit enhanced public access to deliberations of public bodies and to permit improved efficiency of public bodies. State Administration and Regulatory Oversight.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2002 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to permit enhanced public access to deliberations of public bodies and to permit improved efficiency of public bodies.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The definition of “Deliberation” in Section 18 of Chapter 30A of the
2 General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after the
3 phrase “procedural meeting”, the following word:- “materials”.

4 SECTION 2. The definition of “Meeting” in said Section 18 of said Chapter 30A, as so
5 appearing, is hereby further amended by striking out the word “by”, and inserting in place
6 thereof the following words:- “at a gathering of”.

7 SECTION 3. The definition of “Meeting” in said Section 18 of said Chapter 30A, as so
8 appearing, is hereby further amended by striking out the word “or” at the end of clause (d).

SECTION 4. The definition of “Meeting” in said Section 18 of said Chapter 30A, as so appearing, is hereby further amended by striking out the word, “session.” at the end of clause (e) and inserting in place thereof the following words, “session; or”.

SECTION 5. The definition of “Meeting” in said Section 18 of said Chapter 30A, as so appearing, is hereby further amended by adding the following clause:-

(f) participation by members of a public body in a Public Internet Discussion.

SECTION 6. The definition of “Post Notice” in said Section 18 of said Chapter 30A, as so appearing, is hereby amended by inserting after the word “meeting”, the following words: -
“or a public internet discussion”.

SECTION 7. Said Section 18 of said Chapter 30A, as so appearing, is hereby further amended by inserting after the definition of “Post Notice” the following definition:-

“Public Internet Discussion”, a discussion via the Internet by members of a public body, which may include matters within the body’s jurisdiction. All public Internet discussions shall be set up so that the public can monitor the discussion among members of the public body. At the discretion of the public body, a public Internet discussion may be set up so that some defined subset of the public can also make statements in the public Internet discussion. Everyone making statements in a public Internet discussion shall be authenticated, so that all statements can be accurately attributed to the person making them. No votes or formal actions may be taken in a public Internet discussion and there is no quorum requirement for a public Internet discussion.

SECTION 8. Section 20 of Chapter 30A, as so appearing, is hereby amended by striking out subsection (a) in its entirety and inserting in place thereof the following subsection:-

(a)(1) Except as provided in Section 21, all meetings of a public body shall be open to the public.

(2) All public Internet discussions shall be open to the public in that members of the public must be able to monitor the proceedings via the Internet.

(3) No deliberations may take place except at

(i) Meetings,

(ii) Public Internet Discussions, or

(iii) gatherings that meet exceptions (d) or (e) under the definition of Meeting, as defined in Section 18.

SECTION 9. Said Section 20 of Chapter 30A, as so appearing, is hereby further amended by striking out subsection (b) in its entirety and inserting in place thereof the following subsection:-

(b) Except in an emergency, in addition to any notice otherwise required by law, a public body shall post notice of every meeting and public Internet discussion at least 48 hours prior to the start of such meeting or public Internet discussion, excluding Saturdays, Sundays and legal holidays. In an emergency, a public body shall post notice as soon as reasonably possible prior to such meeting or public Internet discussion. Notice shall be printed in a legible, easily understandable format and shall contain a listing of topics that the chair reasonably anticipates will be discussed at the meeting or public Internet discussion.

(1) In the case of a meeting, the notice also shall contain the date, time and place of the meeting.

51 (2)In the case of a public Internet discussion, the notice also shall contain the date and
52 time of the start of the public internet discussion and shall state whether the public is limited to
53 monitoring the discussion among members of the public body or whether some defined subset of
54 the public can also make statements in the public Internet discussion. If some defined subset of
55 the public can make statements in the public Internet discussion, the notice shall provide, or
56 direct readers to, directions for members of that subset to get authenticated so that they can make
57 statements in the public Internet discussion and their statements can be attributed accurately.

58 (3)In the case of a public Internet discussion held via an internet service such as a
59 computer-mediated discussion, conference, forum or blog, it shall be publicly accessible and the
60 notice shall include the URL (or URLs, if there are more than one) and any other information
61 required to access the discussion and its archive.

62 (4)In the case of a public Internet discussion based on the exchange of discrete messages,
63 it shall be possible for the public to subscribe to receive the messages and the messages shall be
64 available from a publicly accessible archive. The notice shall include instructions for subscribing
65 to the messages and instructions for accessing them from the archive.

66 (5)In the case of a continuing public Internet discussion, a notice that the public Internet
67 discussion is continuing shall be reposted at least once a month. This notice shall include the
68 instructions for accessing the public Internet discussion and its archive and shall list the topics
69 that the chair reasonably anticipates will be discussed during the following month.

70 SECTION 10. Said Section 20 of Chapter 30A, as so appearing, is hereby further
71 amended by inserting after the word “meetings”, in each instance in which it appears in
72 subsection (c), the following words:- “and public internet discussions”.

SECTION 11. Said Section 20 of Chapter 30A, as so appearing, is hereby further amended by striking the word “The” at the beginning of subsection (d) and inserting in place thereof the following words:- “In the case of a physical meeting, the”.

SECTION 12. Said Section 20 of Chapter 30A, as so appearing, is hereby further amended by inserting in subsection (d), , the following sentences:- "In the case of public Internet discussions, there is no concept of the physical location of the discussion. Independent of participants’ physical locations, when they are participating in a public Internet discussion, they are present at the discussion. The public must be offered the same access to see, read, or hear the proceedings as the members of the public body have themselves.”

SECTION 13. Section 22 of Chapter 30A, as so appearing, is hereby amended by striking out subsection (a) in its entirety and inserting in place thereof the following subsection:-

(a)(1)A public body shall create and maintain accurate minutes of all meetings, including executive sessions, setting forth the date, time and place, the members present or absent, a summary of the discussions on each subject, a list of documents and other exhibits used at the meeting, the decisions made and the actions taken at each meeting, including the record of all votes.

(2)All information exchanged during a public Internet discussion must be captured and maintained and be freely accessible via the Internet. Each message or statement must have an indication of the date and time it was made and the person who made it. All statements made or opinions expressed in a public Internet discussion are made solely on behalf of the person making the statement or expressing the opinion (independent of whether that person is a member of the public body or the public at large), not on behalf of the public body.